

		Plaintiff is ordered to file and serve <u>by June 25, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached as follows: <u>Exhibit 1</u>, fully executed copies of the settlement agreement and addendums thereto; and <u>Exhibit 2</u>, the notice packet (in English and Spanish). The citations to the exhibits in the proposed order should be updated accordingly. In addition, the notice should be revised as follows: 1. The PAGA Period start date on page 2 of the notice and page 3 of the proposed order differs from the PAGA Period start date on page 3 of the notice. The parties should determine the correct state date for the PAGA Period and ensure that the correct date is stated in the notice and in the proposed order. 2. In the second sentence of the third paragraph on page 4 of the notice, the phrase "faxed or" should be inserted before "postmarked." 3. In the third sentence of the sixth paragraph on page 4 of the notice, the phrase "faxed or" should be inserted before "postmarked." 4. Next to the second check box on the objection form, the phrase "THE REVERSE SIDE" should be removed. The final approval hearing is scheduled for <u>November 5, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. No earlier hearing date is available for this motion.
10	Yeganeh v. Amerisave Mortgage Corporation 2022-01274803	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$873,500 class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? While counsel's declaration states the motion papers were submitted electronically to the LWDA (Payton Decl. (ROA 134) ¶ 68), the proof of service (ROA 142) does not include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents and how service was effected. 2. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply

		with applicable court rules may result in sanctions and/or an order striking the overlong brief. <u>As to the settlement:</u> 3. The parties should state the estimated high and low individual class and average, high and low individual PAGA payments. 4. Plaintiff should state plaintiff's total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). 5. The class and PAGA periods need a firm end date to enable the court to evaluate the fairness and reasonableness of the settlement. E.g., Settlement Agreement ¶¶ 1.12, 1.31. 6. Paragraph 1.24 states the individual PAGA payments will be calculated based on workweeks, which is inconsistent with other terms of the settlement agreement. See Settlement Agreement ¶ 3.2.4.1. 7. The "Released Parties" provision in paragraph 1.41 of the settlement agreement is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "affiliated entity," and "each of their former and present directors, officers, shareholders, owners, members, attorneys, representatives, insurers, predecessors, successors, and assigns." 8. The "Response Deadline" provision in paragraph 1.43 should include disputes. 9. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry and since the time the settlement agreement was signed, they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action and, if any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 10. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel." 11. The "Release by Participating Class Members Who Are Not Aggrieved Employees" provision in paragraph 5.2 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. 12. The "Release by Non-Participating Class Members Who Are Aggrieved Employees" provision in paragraph 5.3 is
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		overbroad. The phrase “and ascertained in the course of the Action” should be removed. 13. Is there a release for participating class member who are aggrieved employees? 14. The dispute procedure in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.4 of the settlement agreement and section 4(3) of the notice should also be revised accordingly. 15. While the court will not determine the amount of attorneys’ fees to be awarded until final approval, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 16. Plaintiff’s counsel seeks costs not to exceed \$25,000. Plaintiff’s counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included. 17. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 18. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. <u>As to the notice:</u> 19. The notice should be revised consistent with the above. 20. The phrase “and PAGA” should be added after “class action” in the title and throughout the document (e.g., in the first sentence of the first paragraph on page 1). 21. The word “already” should be removed from the first sentence of the fifth paragraph on page 1. 22. The following sentence at the bottom of page 1 should be removed: “You will be deemed to have carefully read and understood it.” 23. The word “strongly” should be removed in the second paragraph of section 1.
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		<u>settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
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